

FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES
State of Oklahoma

SPEAKER:

CHAIR:

I move to amend HJR1081 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Adopted: _____
_____ Reading Clerk
Amendment submitted by: Andy Fugate _____

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR
HOUSE JOINT
RESOLUTION NO. 1081

By: Fugate

FLOOR SUBSTITUTE

A Joint Resolution directing the Secretary of State to refer to the people for their approval or rejection a proposed amendment to Section 8C of Article X of the Constitution of the State of Oklahoma; eliminating income threshold; providing for occupancy requirement; providing exception; restricting fair cash value of homestead for purposes of eligibility; prescribing definition of fair cash value pursuant to Section 8B of Article X of the Oklahoma Constitution; providing ballot title; and directing filing.

BE IT RESOLVED BY THE HOUSE OF REPRESENTATIVES AND THE SENATE OF THE
2ND SESSION OF THE 60TH OKLAHOMA LEGISLATURE:

SECTION 1. The Secretary of State shall refer to the people for their approval or rejection, as and in the manner provided by law, the following proposed amendment to Section 8C of Article X of the Constitution of the State of Oklahoma to read as follows:

Section 8C. ~~A.~~ Despite any provision to the contrary, beginning January 1, ~~2005~~ 2027, the fair cash value, as determined

1 by law, on each homestead of an individual ~~head of household whose~~
2 ~~gross household income from all sources for the preceding calendar~~
3 ~~year did not exceed an amount as provided in subsection B of this~~
4 ~~section, and which individual head of household who~~ is sixty-five
5 (65) years of age or older who has occupied the property for a
6 period of at least seven (7) years prior to the first January 1 date
7 following the year during which the person attains the age of sixty-
8 five (65) years, shall not exceed the fair cash value placed upon
9 the property during the first year in which the individual head of
10 household was sixty-five (65) years of age or older ~~and had gross~~
11 ~~household income from all sources which did not exceed an amount as~~
12 ~~provided in subsection B of this section.~~ For purposes of this
13 section, absence from the homestead for a period not to exceed three
14 hundred sixty-five (365) days during any seven-year period shall not
15 disqualify the owner from eligibility. The provisions of this
16 section shall only be applicable to a homestead with a fair cash
17 value that is less than the lowest annual median sales price for
18 single-family residential property within the county in which the
19 homestead is located, as determined for any of the three (3)
20 immediately preceding calendar years. For purposes of this section,
21 the fair cash value shall be determined in the same manner as
22 provided by Section 8B of Article X of the Oklahoma Constitution.
23 Subject to the limitations of this section, the fair cash value
24 shall not exceed such amount as long as the individual head of

1 household who is sixty-five (65) years of age or older owns and
2 occupies the property and ~~as long as the gross household income from~~
3 ~~all sources does not exceed an amount as provided in subsection B of~~
4 ~~this section.~~ If any improvements are made to the property, the
5 fair cash value of the improvements shall be assessed in accordance
6 with law by the county assessor and added to the assessed value of
7 the property. Once the fair cash value of the improvements has been
8 added to the fair cash value of the property, the total fair cash
9 value shall not exceed the revised valuation of the property so long
10 as the individual head of household who is sixty-five (65) years of
11 age or older owns and occupies the property ~~and so long as the gross~~
12 ~~household income from all sources does not exceed an amount as~~
13 ~~provided in subsection B of this section.~~ For any individual head
14 of household who is sixty-five (65) years of age or older prior to
15 January 1, 1997, and has gross household income from all sources of
16 Twenty-five Thousand Dollars (\$25,000.00) or less in calendar year
17 1996, the fair cash value of the real property shall be the fair
18 cash value placed upon the property on January 1, 1997. If the
19 individual head of household ceases to own and occupy the property
20 ~~or if the gross household income from all sources exceeds an amount~~
21 ~~as provided in subsection B of this section,~~ the fair cash value of
22 the property shall be determined as if the provisions of Section 8
23 of Article X of the Constitution of the State of Oklahoma or any
24 other provisions relating to a limitation on the fair cash value of

1 locally assessed real property had been in effect during the time
2 the property was valued pursuant to the provisions of this section.

3 ~~B. The income threshold for the gross household income from all~~
4 ~~sources for an individual head of household under this section shall~~
5 ~~not exceed the amount determined by the United States Department of~~
6 ~~Housing and Urban Development to be the estimated median income for~~
7 ~~the preceding year for the county or metropolitan statistical area~~
8 ~~which includes such county. The Oklahoma Tax Commission shall~~
9 ~~provide such information to each county assessor each year as soon~~
10 ~~as such information becomes available.~~

11 SECTION 2. The Ballot Title for the proposed Constitutional
12 amendment as set forth in SECTION 1 of this resolution shall be in
13 the following form:

14 BALLOT TITLE

15 Legislative Referendum No. _____ State Question No. _____

16 THE GIST OF THE PROPOSITION IS AS FOLLOWS:

17 This measure amends Section 8C of Article 10 of the Oklahoma
18 Constitution. Increases in fair cash value of homesteads are
19 limited for individual heads of household age sixty-five (65) or
20 older. The increase cannot exceed the fair cash value of the
21 property during the first year in which the owner was sixty-five
22 (65) years of age or older. This limit applies if the
23 individual head of household meets both the age requirement and
24 an income limit determined by the United States Department of

Housing and Urban Development. This measure would eliminate the income limit requirement. The age limit would not change. The person would be required to have occupied the homestead for seven (7) years. A person could be away from the homestead for a period not to exceed three hundred sixty-five (365) days in a seven-year period and still qualify. The limit on increases in fair cash value of homestead property would only apply if the fair cash value of the homestead is less than the lowest median sales price for single-family homes in the same county during any of the past three (3) years. The fair cash value would be determined the same way as it is determined for all other purposes in the property tax system.

SHALL THE PROPOSAL BE APPROVED?

FOR THE PROPOSAL — YES _____

AGAINST THE PROPOSAL — NO _____

SECTION 3. The Chief Clerk of the House of Representatives, immediately after the passage of this resolution, shall prepare and file one copy thereof, including the Ballot Title set forth in SECTION 2 hereof, with the Secretary of State and one copy with the Attorney General.

60-2-17227 AO 03/25/26